

OSHUS FREIGHT SERVICE

Terms and Conditions of Carriage and Logistics Services

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TERMS AND CONDITIONS OF CARRIAGE AND LOGISTICS SERVICES

1. Definitions

"Company" means Oshus Freight Service, its affiliates, employees, contractors, agents, and representatives.

"Customer" means any person or entity using the Company's services.

"Shipment" means any package, parcel, cargo, freight, goods, documents, or items submitted to the Company for transportation, storage, forwarding, delivery, customs processing, or related services.

2. Acceptance of Terms

By submitting a Shipment, creating an account, making payment, or using any Company service, the Customer agrees to be legally bound by these Terms and Conditions.

3. Customer Warranties

The Customer warrants and represents that:

- All information provided is true, complete, and accurate.
- The Shipment is lawfully owned or controlled by the Customer.
- The Shipment complies with all applicable laws.
- The Shipment has been properly packaged and labeled.
- The Shipment does not contain prohibited or undeclared goods.

The Customer accepts full legal responsibility for the contents of every Shipment.

4. Prohibited and Restricted Goods

The Company will not knowingly transport:

- Illegal narcotics or controlled substances.
- Firearms, ammunition, explosives, or military equipment.
- Hazardous chemicals or dangerous goods not properly declared.
- Counterfeit products.
- Stolen goods.
- Human remains or biological hazards.
- Sanctioned or embargoed goods.
- Any item prohibited under Nigerian, South African, transit-country, or destination-country law.

The Company may amend this list at any time.

5. Dangerous Goods Declaration

The Customer must fully declare any regulated, hazardous, dangerous, temperature-sensitive, or restricted goods.

Failure to accurately declare such goods constitutes a material breach of these Terms.

The Company reserves the right to refuse transportation, terminate services, or report violations to authorities.

6. Inspection Rights

The Company may, at any time and without prior notice:

- Open packages.
- Scan packages.
- Photograph contents.
- Verify documentation.
- Conduct security inspections.

The Customer waives any claim arising from lawful inspections.

7. Customs and Regulatory Compliance

The Customer is solely responsible for:

- Export permits.
- Import permits.
- Customs declarations.
- Duties and taxes.
- Product certifications.
- Regulatory approvals.

The Company acts solely as a logistics service provider and does not guarantee customs clearance.

8. Seizure, Detention, or Destruction

If a Shipment is suspected of containing prohibited goods or violating applicable law, the Company may:

- Refuse carriage.
- Suspend transportation.
- Return the Shipment.
- Surrender the Shipment to authorities.
- Destroy or dispose of the Shipment where legally authorized.

No compensation shall be payable for such actions.

9. Limitation of Liability

To the maximum extent permitted by law, the Company's total liability for any Shipment shall not exceed the lesser of:

- The declared value accepted by the Company; or
- The transportation charges paid for the Shipment.

The Company shall not be liable for indirect losses, consequential losses, lost profits, lost contracts, business interruption, emotional distress, or reputational damage.

10. Delays

Delivery times are estimates only.

The Company shall not be liable for delays caused by customs inspections, border restrictions, weather conditions, government actions, civil unrest, transportation disruptions, or force majeure events.

11. Indemnification

The Customer agrees to defend, indemnify, and hold harmless the Company against lawsuits, government investigations, regulatory penalties, fines, seizures, customs assessments, attorney fees, and claims by third parties arising directly or indirectly from the Shipment or the Customer's breach of these Terms.

12. Fraud Prevention and AML Compliance

The Company reserves the right to request government-issued identification, business registration documents, proof of ownership of goods, source-of-funds information, and additional compliance documentation.

The Company may refuse service where money laundering, fraud, sanctions violations, or criminal activity is suspected.

13. Payment Obligations

The Customer remains liable for freight charges, customs duties, taxes, storage charges, return shipment costs, and legal recovery costs even where a recipient refuses delivery.

14. Abandoned Shipments

Where a Shipment remains unclaimed for more than 90 days, the Company may store, auction, destroy, or otherwise dispose of the Shipment as permitted by law.

15. Data Protection

The Company may collect, process, store, and share personal information as necessary to provide services and comply with legal obligations.

Processing shall be conducted in accordance with:

- Nigeria Data Protection Act (NDPA).
- Protection of Personal Information Act (POPIA) of South Africa.
- Applicable international privacy laws.

16. Governing Law

For shipments originating in Nigeria, these Terms shall be governed by Nigerian law.

For shipments originating in South Africa, these Terms shall be governed by South African law.

17. Dispute Resolution

Parties shall first attempt to resolve disputes through good-faith negotiations.

If unresolved within 30 days, disputes may be submitted to binding arbitration before resorting to litigation, unless applicable law requires otherwise.

18. Right to Refuse Service

The Company reserves the absolute right to refuse service, terminate accounts, reject shipments, or suspend operations where it reasonably believes that a Customer presents legal, financial, reputational, operational, or security risks.

19. Entire Agreement

These Terms constitute the entire agreement between the Customer and the Company and supersede all prior communications and understandings.

20. Electronic Acceptance

Electronic signatures, online acceptance, website usage, mobile application usage, and payment submissions shall constitute legally binding acceptance of these Terms.